IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF IOWA
CENTRAL DIVISION

CHARLES LEROY WHITE,

Plaintiff,

vs.

ALEX ANDERSEN, in his individual capacity; BRIAN OSWALD, in his individual capacity; GRANT PURCELL, in his individual capacity; and CITY OF DES MOINES, IOWA,

Defendants.

Case No. 4:26-cv-00430-RGE-HCA

COMPLAINT AND JURY DEMAND

COMES NOW the Plaintiff, Charles Leroy White, by and through his attorney, Robert G. Rehkemper, and for his Complaint and Jury Demand against the Defendants, states the following:

JURISDICTION AND VENUE

1. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983. This Court has subject matter jurisdiction pursuant to 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1343(a)(3) (civil rights).

2. This Court has supplemental jurisdiction over Plaintiff's Iowa common law and statutory claims pursuant to 28 U.S.C. § 1367(a), because those claims arise out of the same case or controversy as the federal claims alleged herein.

3. Venue is proper in this District pursuant to 28 U.S.C. § 1391(b)(1) and (b)(2) because one or more of the Defendants resides in this District and because a substantial part of the acts and omissions giving rise to Plaintiff's claims occurred within this District.

4. Assignment to the Central Division is proper because the events giving rise to this action occurred in Des Moines, Polk County, Iowa.

5. Plaintiff's causes of action against all Defendants concern violations of his constitutional rights and personal liberties and are brought, to the extent applicable, pursuant to 42 U.S.C. § 1983, the common law, and/or Chapter 670 of the Iowa Code ("Municipal Tort Claims Act").

6. Plaintiff seeks reasonable attorney fees and costs pursuant to 42 U.S.C. § 1988(b).

PARTIES

7. Plaintiff Charles Leroy White ("White") is a citizen of the United States and was at all times relevant hereto a resident of Des Moines, Polk County, Iowa.

8. Defendant Alex Andersen ("Andersen") is a citizen of the United States and is a resident of the State of Iowa.

9. At all times relevant hereto, Andersen was a certified peace officer employed by the Des Moines Police Department, acting within the scope of his employment with the City of Des Moines and under color of state law.

10. Defendant Brian Oswald ("Oswald") is a citizen of the United States and is a resident of the State of Iowa.

11. At all times relevant hereto, Oswald was a certified peace officer employed by the Des Moines Police Department, acting within the scope of his employment with the City of Des Moines and under color of state law.

12. Defendant Grant Purcell ("Purcell") is a citizen of the United States and is a resident of the State of Iowa.

13. At all times relevant hereto, Purcell was a certified peace officer employed by the Des Moines Police Department, acting within the scope of his employment with the City of Des Moines and under color of state law.

14. Defendant City of Des Moines, Iowa ("Des Moines" or the "City") is a municipal corporation organized and existing under the laws of the State of Iowa, acting under color of state law, and operating the Des Moines Police Department.

15. Andersen, Oswald, and Purcell are referred to collectively herein as the "Defendant Officers." Each of the Defendant Officers is sued in his individual capacity.

16. As certified peace officers, each of the Defendant Officers had the legal obligation to act in conformity with the United States and Iowa Constitutions and other applicable federal and state law.

17. At all times material hereto, each of the Defendant Officers was acting within the scope and course of his employment as a peace officer with the Des Moines Police Department and under color of state law.

FACTUAL ALLEGATIONS

The Response and Initial Encounter

18. On December 1, 2024, at approximately 11:30 a.m., officers of the Des Moines Police Department responded to a business located near 2600 Gannett Avenue in Des Moines, Polk County, Iowa, regarding a report of a man who was reportedly looking into and pulling on the door handles of a parked vehicle.

19. The man was later identified as Plaintiff Charles Leroy White.

20. Defendant Andersen was the first officer to arrive on scene. Defendants Purcell and Oswald arrived there after to assist.

21. Officers directed White to leave the property, and White complied, walking away from the premises.

22. White thereafter returned to the area of the property.

The Initial Use of Force

23. The Defendant Officers attempted to take White into custody.

24. As Officers approached, White backed away from the Officers and stated words to the effect that the Officers should not touch him.

25. White did not strike or attempt to strike, lunge toward, or otherwise offer any physical violence to the Defendant Officers.

26. White was unarmed and did not possess or display any weapon during the encounter.

27. Defendant Oswald drew his Department-issued conducted energy weapon (a "CEW," also known by the trademark name "Taser"), pointed it at White, displaying the red laser marking on White's clothing with the device.

28. Officers ordered White to get onto the ground.

29. Defendant Oswald discharged the CEW's probe cartridge at White as he attempted to flee from the Officers on foot. One probe struck White in the back of the neck; the other probe failed to make an effective connection.

White's Surrender

30. White attempted to run away from the Officers, and they pursued White a short distance.

31. White ceased continued flight and voluntarily lowered himself to the ground, coming to rest on his back.

32. In lowering himself to the ground and lying on his back, White surrendered and submitted to the Officers' authority.

33. The Defendant Officers were equipped with and activated body-worn cameras during the incident, which recorded the events described herein.

34. Body-worn-camera footage, and a still image captured from that footage, depict White lying on his back on the ground, with his hands visible and empty, offering no resistance, before the Defendant Officers made physical contact with him.

35. As White lay on his back in a posture of surrender, Defendant Oswald yelled at White, "Don't you move! Get on your back now!"

36. Notwithstanding that White had surrendered, was lying on his back with his hands visible, was unarmed, and posed no threat of harm to the officers or to any other person, the Defendant Officers converged upon White and applied physical force to him.

The Force Applied After Surrender

37. Defendant Andersen went hands-on and rolled White over from his back onto his front.

38. White remained non-resistant as Andersen rolled him over.

39. As the Defendant Officers applied force to him, White exclaimed, "ah, you broke my jaw," and "please don't do that."

40. While White was on the ground, offering no resistance, and posing no threat to the Officers or to any other person, Defendant Purcell applied pressure and force to White's jaw with sufficient force to fracture it.

41. White screamed out in pain.

42. Defendant Oswald then deployed his CEW in drive-stun mode against White's left calf while White was on the ground and being physically restrained by the Defendant Officers.

43. The force applied to White after he surrendered, including the application of force to his jaw and the drive-stun to his leg, was objectively unreasonable, unnecessary, and excessive under the totality of the circumstances.

44. As a direct and proximate result of the force applied by the Defendant Officers, White sustained a fracture to his jaw.

45. White was thereafter handcuffed and taken into custody.

46. At the time the Defendant Officers applied the force described herein, White had ceased any flight or resistance, was on the ground, was unarmed, and posed no threat of harm to the Officers or to any other person.

47. A reasonable officer in the position of the Defendant Officers would have known that applying such force to a surrendered, non-resistive, and unarmed individual was unlawful.

Denial of Medical Care

48. Immediately after the force was applied, and repeatedly thereafter, White told the Defendant Officers that his jaw was broken.

49. White's serious injury was obvious; White is heard on body-worn-camera stating that his jaw was broken and screaming in pain.

50. A fractured jaw is an objectively serious medical need that requires prompt medical evaluation and treatment.

51. Despite their knowledge of White's serious injury, the Defendant Officers did not summon emergency medical personnel to the scene and did not otherwise provide or arrange for medical care for White's jaw.

52. Rather than obtain medical care for White's obvious and serious injury, the Defendant Officers transported White to the police station and then to jail without treatment.

53. White received no medical treatment for his fractured jaw on December 1, 2024.

54. White was not provided medical treatment for his fractured jaw until December 2, 2024, when personnel at the Polk County Jail arranged for White to be taken for medical care at Broadlawns Medical Center.

DAMAGES COMMON TO ALL COUNTS

55. As a direct and proximate result of the conduct of the Defendants described herein, White has suffered and will continue to suffer the following damages:

(a) Past and future physical and mental pain and suffering;

(b) Past and future loss of function and use of mind and body, physical impairment and disability;

(c) Past and future medical, dental, and related expenses;

(d) Deprivation of his constitutional rights and personal liberties;

(e) Attorney fees and costs; and

(f) Other incidental out-of-pocket expenses.

LAW COMMON TO ALL COUNTS

56. At all times material hereto, each of the Defendant Officers was acting under color of state law within the meaning of 42 U.S.C. § 1983.

57. The Fourth Amendment to the United States Constitution, made applicable to the States through the Fourteenth Amendment, guarantees the right to be free from unreasonable seizures, including the right to be free from the use of excessive force in the course of a seizure. *Graham v. Connor*, 490 U.S. 386 (1989).

58. The reasonableness of the force used is judged from the perspective of a reasonable officer on the scene, in light of the facts and circumstances confronting the officer, including the severity of the crime at issue, whether the individual posed an immediate threat to the safety of the officers or others, and whether the individual was actively resisting or attempting to evade arrest by flight. *Graham*, 490 U.S. at 396.

59. At all times material hereto, the law was clearly established in this Circuit that the use of objectively unreasonable or excessive force by a law enforcement officer in the course of a seizure violates the Fourth and Fourteenth Amendments to the United States Constitution.

60. At all times material hereto, the law was clearly established in this Circuit that an arrestee who has ceased resisting and surrendered has a constitutional right to be free from the further or continued use of force. *See Burnikel v. Fong*, 886 F.3d 706 (8th Cir. 2017).

61. At all times material hereto, the law was clearly established in this Circuit that law enforcement's use of a conductive energy weapon against an individual who is not actively resisting and poses no imminent threat to officers or others is objectively unreasonable and violative of the Fourth and Fourteenth Amendments. *See Shekleton v. Eichenberger*, 677 F.3d 361 (8th Cir. 2012).

62. At all times material hereto, the law was clearly established in this Circuit that a law enforcement officer who is present at the scene and fails to intervene to prevent or to stop the use of

excessive force by a fellow officer, when that officer had a reasonable opportunity to do so, is liable under 42 U.S.C. § 1983 for the resulting deprivation. *See Krout v. Goemmer*, 583 F.3d 557 (8th Cir. 2009); *Putman v. Gerloff*, 639 F.2d 415 (8th Cir. 1981).

63. At all times material hereto, the law was clearly established that officers having custody of an arrestee with an obvious and serious medical need may not act with deliberate indifference to that need. *See Barton v. Taber*, 908 F.3d 1119 (8th Cir. 2018).

64. The foregoing law was clearly established as of December 1, 2024, placing each of the Defendant Officers on fair notice that the conduct described above violated White's clearly established constitutional rights.

DIVISION I

Fourth and Fourteenth Amendment (42 U.S.C. § 1983): Excessive Force and Denial of Medical Care

Defendants Andersen, Oswald, and Purcell

65. White incorporates by reference the allegations in the paragraphs above as though fully set forth herein.

66. The Fourth Amendment to the United States Constitution, made applicable to the States through the Fourteenth Amendment, guarantees the right to be free from unreasonable seizures, including the right to be free from the use of excessive force.

67. The Defendant Officers' use of force against White constituted a seizure of his person within the meaning of the Fourth Amendment.

68. Defendant Purcell's application of force to White's jaw, after White had surrendered, come to rest on the ground, and posed no threat to the officers or others, was objectively unreasonable and violated the Fourth and Fourteenth Amendments to the United States Constitution.

69. Defendant Oswald's use of the CEW against White, including the drive-stun applied while White was on the ground, restrained, and no longer resisting, was objectively unreasonable and violated the Fourth and Fourteenth Amendments to the United States Constitution.

70. Defendant Andersen's use of force against White, including participating in the application of force after White had surrendered, was objectively unreasonable and violated the Fourth and Fourteenth Amendments to the United States Constitution.

71. To the extent any Defendant Officer did not personally apply a particular use of force described herein, that officer was present, participated in the seizure of White, and had a reasonable opportunity to intervene to prevent or stop the unreasonable force used by the other officers but failed to do so, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

72. At all times following his seizure, White was an arrestee in the custody and control of the Defendant Officers and was entitled under the Fourteenth Amendment to the United States Constitution to adequate medical care for his serious medical needs.

73. White's fractured jaw was an objectively serious medical need that was obvious to the Defendant Officers, who had caused the injury, heard White state that his jaw was broken, and heard White scream in pain.

74. The Defendant Officers acted with deliberate indifference to, and were objectively unreasonable in responding to, White's serious medical need by failing to summon or provide any medical care and instead transporting White to jail without treatment, thereby further violating White's rights under the Fourteenth Amendment to the United States Constitution.

75. The Defendant Officers' conduct was malicious and/or involved reckless, callous, and deliberate indifference to White's constitutionally protected rights, and shocked the conscience.

76. As a direct and proximate result of the Defendant Officers' conduct, White suffered irreparable injury to his constitutional rights and personal liberties guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution, and the damages set forth above.

77. The Defendant Officers' conduct was excessive, done with actual malice toward White, and/or with willful and wanton indifference to and deliberate disregard for the constitutional rights of White, justifying an award of exemplary, punitive damages against each of the Defendant Officers.

78. White seeks compensatory and punitive damages against the Defendant Officers for the violation of his rights to be free from unreasonable seizures and excessive force and to receive adequate medical care, as guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution, together with reasonable attorney fees and costs pursuant to 42 U.S.C. § 1988(b).

REQUESTED RELIEF

WHEREFORE, Plaintiff Charles Leroy White respectfully requests judgment against the Defendants as follows:

(a) Compensatory and actual damages as to all Defendants in a fair and reasonable amount to be determined by the trier of fact;

(b) Punitive damages as to Defendants Andersen, Oswald, and Purcell;

(c) Nominal damages in the alternative, as to Defendants Andersen, Oswald, and Purcell;

(d) Reasonable attorney fees and costs, including pursuant to 42 U.S.C. § 1988(b);

(e) Pre-judgment and post-judgment interest as allowed by law; and

(f) Such other and further relief as the Court deems just and equitable in the premises.

JURY DEMAND

Plaintiff, Charles Leroy White, hereby demands a trial by jury as to all claims and issues stated in this Complaint.

Respectfully Submitted,

Robert Rehkemper

By: /s/

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